



PEOPLE OPERATIONS · POLICY

External Workforce Handbook

How Helvia brings in contingent workers and contractors, and the rules that keep the two apart.

External Workforce Handbook
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Hiring managers, HR and Finance

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Why We Use External Workers

We bring in external workers when we need capacity or a skill that we do not have, and do not need permanently.

Three things usually drive the decision:

Speed. An agency can put someone in a seat in a week or two. Hiring an employee takes far longer, and for a short-lived need that gap matters.

Specialist skill. Some work needs expertise we would never hire full time — a security audit, a migration, a brand refresh. We buy it for the length of the project and no longer.

Flexibility. Demand moves. External workers let us scale a team up for a busy quarter and back down afterwards without the cost and disruption of hiring and then losing employees.

There are real trade-offs, and they are worth stating plainly. External workers cost more per hour than an employee doing the same job. They are committed to their own employer and their other clients as well as to us. They take our knowledge with them when they go. And because they are employed by someone else, there are things we are not allowed to do with them — that is what the Eligibility Matrix is about.

The rule of thumb: if the work is ongoing, central to what we do, and needs someone embedded in the team for years, that is an employee. Everything else is a candidate for one of the two tracks below.

The Two Tracks at a Glance

Everyone we bring in who is not a Helvia employee is an **external worker**. There are two tracks, and picking the right one matters more than anything else in this handbook.

	Track 1 — Contingent Worker	Track 2 — Contractor
Who employs them	A staffing agency	Themselves, or their own company
What we are buying	A person's time	A defined piece of work
How we pay	Hourly, against an approved timesheet	Fixed fee or milestones, against an invoice
Who directs the work	We do — day-to-day	They do; we agree the outcome
Paperwork	Agency agreement plus an assignment	Contract plus a Statement of Work
Typical length	Weeks to months, often extended	The life of the project
Who we talk to about problems	The agency	The contractor, or their company
Typical examples	Extra support agents for a launch, cover for parental leave, a second QA tester for a release	A penetration test, a website build, a fractional CFO, a design sprint
Raised in	Beeline, as a Worker Request	Beeline, as a Statement of Work

The quick test. Ask yourself: **am I buying hours, or am I buying a result?**

If you will be telling this person what to do each day, setting their hours, and paying for the time they spend — that is Track 1, and they must come through an agency. If you have agreed what will be delivered and by

when, and it is up to them how they get there — that is Track 2.

Do not improvise a third option. Paying an individual directly for hourly work they do under your direction is how companies end up with a misclassification problem, and at our size a single one is expensive. If you are not sure which track you are in, HR will tell you — that conversation takes ten minutes and saves a great deal later.

Terms and Definitions

External worker — anyone doing work for Helvia who is not employed by Helvia. Covers both tracks.

Contingent worker — Track 1. An individual employed by a staffing agency and assigned to us for a period of time, paid by the hour. Sometimes called a temp. The agency is their employer throughout and makes every decision about their pay, benefits, discipline and employment. We direct their day-to-day work and approve their hours.

Staffing agency — the company that employs contingent workers and places them with us. Also called the agency. They are the worker's employer of record.

Contractor — Track 2. A business or an individual engaged to deliver defined work under a contract. Includes both companies and one-person operations.

Independent contractor (IC) — a contractor who is a self-employed individual rather than a company. Also called a freelancer or, in the US, a "1099" after the IRS form we file for them. ICs carry the highest misclassification risk, which is why they get a classification check.

Statement of Work (SOW) — the document that says what a contractor will deliver, by when, and for how much. Sits underneath our contract with them.

Bill rate — what we pay the agency per hour. It is not what the worker takes home; the agency's margin, taxes and benefits come out of it.

Assignment — a contingent worker's placement with us. It has a start date, an end date and a hiring manager.

Engagement — a contractor's piece of work with us, defined by a SOW.

Co-employment — the risk that a contingent worker is treated as our employee in practice, because of how we manage them, even though the agency employs them on paper. The Eligibility Matrix exists to keep us the right side of this.

Beeline — our vendor management system. Requests, assignments, SOWs, timesheets and invoices all live here.

BambooHR — our HR system. Holds the record of every person who works for us, employees and external workers alike.

Hiring manager — the person who needs the work done, raises the request, directs the day-to-day and approves the hours.

Choosing the Right Track

Work through these five questions before you raise anything. They are the same questions HR will ask you, so answering them first saves a round trip.

1. Am I buying hours or a result? Hours points to Track 1. A defined deliverable points to Track 2.

2. Who decides how the work gets done? If we set the method, the tools and the daily priorities, that is Track 1. If we describe the outcome and leave the approach to them, that is Track 2.

3. Who provides the equipment? If the person needs a Helvia laptop and Helvia systems to do the job at all, that leans Track 1. A contractor normally works on their own kit. (Security sometimes forces us to issue a laptop to a contractor anyway — that alone does not change the track.)

4. How will we know it is finished? A date points to Track 1. An accepted deliverable points to Track 2.

5. Is it open-ended? Work that will simply carry on indefinitely is either Track 1 or, honestly, a job we should be hiring for. Work bounded by a project is Track 2.

Where it points to a company with only one or two people, the answer is still Track 2 — but it goes through the classification check first, because that is exactly the shape the IRS looks at hardest. See the Contractor Process Guide.

Where the answers are genuinely mixed, send the five answers to hr@helvia.ai and HR will make the call. Do not split the difference by putting someone on an hourly contractor arrangement; that is the one outcome that carries real risk.

A note on cost. Track 1 usually looks more expensive per hour, because the bill rate carries the agency's employment costs and margin. That is not a reason to reach for Track 2. The classification follows the shape of the work, not the budget line.

The IRS Test: Employee or Contractor

When the IRS asks whether someone is really an independent contractor or an employee in all but name, it looks at three groups of factors. No single one settles it — they weigh the whole picture.

1. Behavioural control — who controls how the work is done?

Signs that point to **employee**: we set their hours; we say which tools and methods to use; we train them in our way of working; we supervise the detail, not just the result; they report into a manager the way our staff do.

Signs that point to **contractor**: they set their own schedule; they decide the method; they bring their own expertise and need no training from us; we review the output rather than the process.

2. Financial control — who carries the commercial risk?

Signs that point to **employee**: we pay by the hour with no cap; we reimburse their expenses as we would an employee's; they have no other clients; they have nothing invested in their own business.

Signs that point to **contractor**: a fixed price or milestone payments; they can make a loss if the job runs long; they carry their own insurance and overheads; they work for other clients; they market their services publicly.

3. Type of relationship — what does the arrangement look like?

Signs that point to **employee**: no end date; the work is core to our business; they get benefits; they look and act like a member of the team from the outside.

Signs that point to **contractor**: a written contract with a defined scope and end; the work is peripheral or specialist; no benefits; they are clearly identified as external.

Why this matters at our size. Getting it wrong means back taxes, unpaid overtime, penalties and interest — and potentially a benefits claim. A company of our headcount feels that immediately. It is also easy to avoid: when the shape of the work says employee, we either hire, or we bring the person in through an agency on Track 1, where the agency carries the employment relationship.

The classification check in the Contractor Process Guide turns these factors into a short questionnaire. HR runs it for every independent contractor and for any supplier of one or two people. It takes about five working days.

Who Does What

Four roles, and they do not overlap much.

The hiring manager decides the work is needed and which track it belongs in, raises the request in Beeline, picks the person, gives day-to-day direction on Track 1, approves timesheets and invoices, runs the check-ins, and tells HR when something is changing or ending. They are the single point of accountability for the assignment.

HR owns the process. They confirm the classification, run the classification check for contractors, manage the relationship with our agencies, negotiate and review bill rates, keep BambooHR current, handle anything involving conduct, accommodations or a difficult ending, and are the escalation point when something does not fit the standard path. At our size this is one or two people — talk to them early rather than late.

Finance approves spend above the threshold, pays agency and contractor invoices, and owns the budget conversation. They see every SOW before it is signed.

IT creates and removes accounts, issues and recovers equipment, and sets the access level. They act on what HR records in BambooHR, so an assignment that is not recorded properly is an account that does not get closed.

Approval thresholds

Total committed spend	Who approves
Up to \$25,000	The hiring manager's manager
Over \$25,000	The department head, plus Finance

Total committed spend	Who approves
Any independent contractor, at any value	HR, after the classification check

What no one should be doing. A hiring manager must not agree rates directly with a worker or an agency, must not promise anyone a permanent job, and must not engage an individual outside these two tracks. If someone is already doing work for us and none of this happened, tell HR now — unwinding it early is far cheaper than unwinding it later.

Co-Employment Rules

A contingent worker is employed by the agency, not by us. Co-employment is the risk that in practice we treat them as ours anyway — and that a tribunal, a tax authority or a benefits claim later agrees.

The line is not about being distant or unfriendly. It is about which decisions belong to whom.

Ours to make: what work they do day to day, what the priorities are, what good looks like, whether the assignment continues, and whether they get access to a system or a site.

The agency's to make: what they are paid, what benefits they get, whether they are disciplined, whether they are dismissed, how their leave and sickness are handled, and whether they move to another client.

The practical rules

- Do not run a performance appraisal for a contingent worker. Give feedback freely, and send it to the agency as well — but the formal review belongs to their employer.
- Do not get involved in their pay. Not the rate, not overtime, not a bonus, not a raise. If they raise it with you, point them to their agency.
- Do not discipline or dismiss anyone. If the assignment needs to end, tell HR and the agency will handle the conversation.
- Do not promise future work or a permanent role. Refer them to our careers page like anyone else.
- Do not include them in employee-only things: our benefits, our staff share schemes, all-hands sessions covering company results or strategy.
- Do include them in anything they need to do the job: team meetings, project rituals, safety briefings, tooling and training specific to the work.
- Do make sure people can tell. Their email signature and any directory entry should show the agency and that they are on assignment with us.

Length matters. The longer someone stays on an assignment, the more they look like an employee to an outside observer. HR reviews every assignment that passes twelve months and asks the honest question: is this a temporary need, or is it a job? Where it is a job, we should hire.

The full list of what is and is not allowed is in the Eligibility Matrix.

Harassment, Discrimination and Safety

Everyone working at Helvia is entitled to a workplace free of harassment, discrimination and violence — external workers included, and whether the person raising the concern is one of ours or one of theirs.

If something is raised with you, or you see it:

1. **Report it the same day** to HR, at hr@helvia.ai or in person. If the concern involves HR, go to the CEO.
2. **Do not investigate it yourself.** Do not interview people, gather statements, or test the story. Well-meant digging contaminates a proper investigation and can make things worse for the person who spoke up.
3. **Do not promise confidentiality you cannot keep.** Tell them it will be handled discreetly and shared only with those who need to know.
4. **Write down what you were told**, in their words, with the date, and give it to HR.

HR will decide what kind of investigation is needed, involve the agency where a contingent worker is on either side, involve the contractor's company where a contractor is, and take advice where the matter is serious.

Where there is an immediate safety risk, act first: separate the people involved, and call emergency services if anyone is in danger. Then call HR.

Retaliation is prohibited. Nobody who raises a concern in good faith, or takes part in an investigation, should see any consequence for it — not a changed shift, not a quieter assignment, not an assignment that quietly ends. This applies to external workers exactly as it does to employees, and ending someone's assignment shortly after they raised something is precisely the pattern that creates liability. Talk to HR before making any change to the assignment of someone who has raised a concern.

Our size does not exempt us. The federal rules on discrimination and harassment apply to employers with 15 or more employees, and state law in several of the states we operate in sets a lower bar still. Assume we are covered.

Rehiring Former Employees

Former employees can come back as external workers, and often they are the best person for the job — they already know how we work.

The waiting period. There must be a gap of at least 90 days between someone leaving our payroll and starting as an external worker. The gap is what keeps the two relationships genuinely separate; without it, an arrangement looks like the same job continued under a different label, which is a tax problem for us and for them.

Coming back to the same job. Someone returning to substantially the work they used to do needs a longer gap — twelve months. If the need is urgent and the role is the same, the honest answer is usually to re-hire them as an employee rather than to route them through an agency.

People who left involuntarily are not eligible to return as external workers. HR checks this before any offer is discussed.

Two things not to do. Do not tell someone on their way out that there will be contract work waiting for them; that conversation creates the very continuity the waiting period exists to break. And do not agree anything directly with a former colleague — it goes through HR and the normal track, like any other engagement.

Exceptions are possible where the business case is strong and the classification is clean. They need the CEO's written approval, and HR will want to see why an agency placement or a re-hire does not work instead.

Right to Work and Visas

Everyone working for us must have the right to work in the country where they are doing the work. Who checks depends on the track.

Track 1 — contingent workers. The agency is the employer and carries the obligation. They verify right to work and complete the I-9 before the assignment starts. We do not collect or keep immigration documents for agency workers — that is their employer's job, and holding the paperwork ourselves blurs exactly the line we are trying to keep clear. HR confirms with the agency that checks are done; that confirmation is what we record.

Track 2 — contractors. A contractor company is responsible for its own people. For an independent contractor working as an individual, HR confirms their right to work as part of onboarding.

Visa sponsorship. We do not sponsor visas for external workers on either track. If an agency puts forward someone who needs sponsorship now or later, the agency sponsors and carries the cost, or the candidate is not eligible for the assignment. Say so in the request so the agency does not waste time.

If the role genuinely needs someone we would sponsor, that is a conversation about hiring an employee, not about the external workforce. Talk to HR.

Support letters. Occasionally an agency asks us to confirm in writing that someone is on assignment with us. HR writes those letters — they confirm the assignment and nothing more. Do not write one yourself; a letter that overstates the relationship is evidence of the wrong thing.

Confidential Information and IP

External workers see our systems, our customers and our plans. Two things need to be true before that happens.

A confidentiality agreement is in place. For contingent workers this sits in our agreement with the agency and covers everyone they place. For contractors it is in the contract. HR confirms it before access is granted — no agreement, no access, regardless of how urgent the work is.

We own what they produce. Anything created for us in the course of the work belongs to Helvia. This is explicit in both the agency agreement and the contractor contract, and it needs to be, because the default position in law is often the opposite for contractors: absent a written assignment, a freelancer may retain

copyright in what they build. For anything involving code, design, written content or product IP, check with HR that the contract carries a proper assignment clause before work starts.

In practice

- Give access to what the job needs, and nothing more. Ask IT for the narrowest role that works.
- Do not share customer data, financial results or roadmap material outside the scope of the assignment.
- Anything an external worker builds goes into our repositories and our accounts, not their personal ones.
- Where a contractor is using their own tooling, agree up front where the work lives and how it is handed over. "It is on my laptop" at the end of an engagement is a bad place to start a conversation.
- Access is removed the day the assignment ends. See the offboarding sections of both process guides.

Where an external worker will see personal data about our customers or staff, tell HR at the request stage. There may be a data processing agreement to put in place first.

Where to Get Help

hr@helvia.ai — the first stop for anything in this handbook. Classification questions, agency relationships, bill rates, conduct concerns, accommodations, anything that does not fit the standard path. Aim to reach HR before you commit to something, not after.

it@helvia.ai — accounts, equipment, access levels, returning kit.

finance@helvia.ai — budget, purchase orders, invoice queries, payment timing.

Beeline — requests, assignments, SOWs, timesheets, invoices. Raise the work here once you know which track you are in.

BambooHR — the record of who works for us. Managers can see their own team, including external workers.

Companion guides

If you need to	Read
Work out which track applies	This handbook: Choosing the Right Track
Bring in an agency temp	Contingent Worker Process Guide
Engage a contractor or freelancer	Contractor and Freelancer Process Guide
Find your way around the systems	Systems Quick Guide
Check whether something is allowed	Eligibility Matrix
Answer a question about hours, breaks or overtime	Pay, Hours and Breaks
Sort out travel	Travel and Expenses
Handle a remote or flexible arrangement	Flexible Work Policy

If you need to	Read
Respond to a health or accommodation request	Accommodations and Leave

A standing invitation. If something in these guides does not match what actually happens, tell HR. They are short on purpose, and they are easier to keep accurate at our size than the versions large companies end up with.